

23PSCV00321 23PSCV00321

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Case Number: 23PSCV00321 Hearing Date: September 22, 2026 Dept: G

Plaintiff Elizabeth Turriaga's Motion for
Attorney's Fees

Respondent:

Defendant General Motors LLC

TENTATIVE

RULING

Plaintiff

Elizabeth Turriaga's Motion for Attorney's Fees is GRANTED in the reduced
amount \$10,392.00.

Plaintiff's request for costs is DENIED WITHOUT
PREJUDICE.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective
motor vehicle. On March 9, 2018,
plaintiff Elizabeth Turriaga (Turriaga) bought a car manufactured by defendant General
Motors LLC (GM).

On February

2, 2023, Turriaga filed the Complaint. On

June 11, 2024, Turriaga filed the operative Second Amended Complaint, alleging
causes of action for (1) violation of Civil Code section 1793.2, subdivision

(d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement by concealment.

On

February 20, 2026, the parties informed the court that they settled the case.

On August

18, 2026, Turriaga filed this motion for attorney's fees. On September 4, 2026, GM filed the opposition, and there is no reply.

The

motion is set for hearing on September 22, 2026.

REQUESTS

FOR JUDICIAL NOTICE

Turriaga

requests that the court take judicial notice of documents of the United States District Court and the Superior Court of California. The court may take judicial notice of the records of any federal or California court.

(See Evid. Code, § 452, subd. (d).)

Thus, the court takes judicial notice of the requested records.

EVIDENTIARY

OBJECTIONS

Turriaga

objects to portions of the declaration of GM's counsel. The following objections are OVERRULED: 1–12.

ANALYSIS

Plaintiff

Turriaga moves for an award of attorney's fees and costs in the amount of \$22,005.47. For the following reasons, the motion for attorney's

fees is GRANTED in the reduced amount of \$10,392.00. Plaintiff's request for costs is DENIED WITHOUT

PREJUDICE.

Legal
Standard

“If

the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) “[T]he negotiation of a possible settlement

does not excuse the failure to proceed with due diligence in the filing of pleadings, absent some understanding that pleadings need not be filed while negotiations are in process.” (Turley

v. Turley (1967) 254 Cal.App.2d 169, 173.)

In the context of an award of attorneys’ fees “the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys’ fee application, and in the court’s fee award.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 631.) “[I]t is inappropriate and an

abuse of a trial court’s discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff’s damages or recovery in a Song-Beverly Act action.” (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 510.)

In

assessing attorney’s fees under the Song-Beverly Act, a trial court must make an “initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

“It

is well established that the determination of what constitutes reasonable

attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys’ fees award.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “[P]aralegal fees may be awarded as attorney’s fees if the trial court deems it appropriate. . . .” (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where

a party is challenging the reasonableness of attorney's fees as excessive that party must "attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) "[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Id. at 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Ibid.)

A

"court should defer to the winning lawyer's professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker." (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel's hourly rates, the court will deem an attorney's hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

As

the prevailing party, the court determines that Turriaga is entitled to attorney's fees and costs. To decide the award, the court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Reasonableness
of the Claimed Hours

The

Song-Beverly Act provides for the recovery of "costs and expenses, including

attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer."

(Civ. Code, § 1794, subd. (d).) A

verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (Hadley

v. Krepel (1985) 167 Cal.App.3d 677, 682.)

However, counsel bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of

North America, LLC (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds

the tasks unreasonable or unnecessary since "padding in the form of inefficient or duplicative efforts is not subject to compensation." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Turriaga's

counsel claims 29.7 hours of legal work.

(See Mot., pp. 2, 5, 7; see

also Shahian Decl., Exh. 1, p. 2.) The verified fee bill is prima facie evidence of the legal services necessarily incurred.

(See Shahian Decl., Exh. 1; see also Hadley, supra,

167 Cal.App.3d at 682.) To determine the

reasonableness of the claimed hours, the court considers the arguments from GM's opposition.

The

court categorizes the challenged billing entries with which GM takes issue as follows: (1) excessive time for work using templates, (2) overstaffing and inefficient litigation, and (3) anticipated time. (See Opp., pp. 7–9, 11–12.)

Excessive

Time for Work Using Templates

GM

argues a reduction is required in the attorney's fee award for the "unreasonable" time used on counsel's "litigation-by template strategy." (Opp., p. 8.)

The court agrees.

The

court does not award attorney's fees if the time billed is excessive for the type of work. (See Civ. Code, §

1794, subd. (d); see also Premier Medical Management Systems, Inc., supra,

163 Cal.App.4th at 564.) The court may reduce an attorney's fee award if "plaintiff's counsel failed to act efficiently." (Mikhaeilpoor, supra, 48 Cal.App.5th at 256.)

The court reviewed the specific entries GM challenged as unreasonable and found that Turriaga's counsel spent excessive time drafting the Complaint, the meet and confer letter, the discovery requests, the discovery responses, and this motion. Given that the pleadings were based on templates, and this case did not present novel or complex issues, the court finds the time billed to be excessive. (See Opp., pp. 7–9, referencing Shahian Decl., Exh. 1; see also Quezada Decl., Exhs. A–J.)

Counsel billed 1.3 hours to draft the Complaint, but the court finds counsel should have drafted the Complaint in 1.0 hour. Counsel billed 1.2 hours to draft the meet and confer letter, but the court finds counsel should have drafted the letter in 0.5 hours. Counsel billed 2.0 hours to draft the discovery requests, but the court finds counsel should have drafted the requests in 0.5 hours. Counsel billed 2.0 hours to draft the discovery responses, but the court finds counsel should have drafted the responses in 0.5 hours. Counsel billed 1.8 hours to draft this motion, but the court finds counsel should have drafted the motion in 1.0 hour.

Thus, the court reduces the award of attorney's fees for excessive time by 4.8 hours. (0.3 hours from Mark Gibson, 0.7 hours from Nino Sanaia, 1.5 hours from Shelby Clark, 1.5 hours from James Carroll, and 0.8 hours from Angel Baker.)

Overstaffing
and Inefficient Litigation

GM argues a reduction is required in the attorney's fee award for "non-compensable inefficiencies [which] resulted from the excessive number of billing attorneys." (Opp., p. 11, capitalization

changed.) The court disagrees.

The

court may reduce an attorney's fee award if "plaintiff's counsel failed to act efficiently." (Mikhaeilpoor, supra, 48 Cal.App.5th at 256.) "In evaluating whether the attorney fee request is reasonable, the trial court should consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38, cleaned up.) Additionally, the court does not award attorney's fees for work that is unnecessarily duplicative. (See Civ. Code, § 1794, subd. (d); see also Premier Medical Management Systems, Inc., supra, 163 Cal.App.4th at 564.)

The

court reviewed the specific entry GM challenged as unreasonable but found that the preparation for and attendance at the final status conference was necessary and not excessive. Moreover, while fifteen (15) timekeepers billed in connection with this action, there are no demonstrated inefficiencies caused by purported overstaffing, except for the excessive billing previously discussed.

Thus,

the court does not reduce the award of attorney's fees for overstaffing.

Anticipated

Time

GM

argues a reduction is required in the attorney's fee award for the fee motion because the "anticipated" fees are excessive. (Opp., pp. 8–9.) The court agrees, but notes that Plaintiff failed to specify the number of "anticipated" hours.

The

court must base its award of attorney's fees on "actual time expended." (Civ. Code, § 1794, subd. (d).) The plain language of Section 1794, subdivision (d) necessarily precludes an award based on speculative fees.

The motion anticipates an unspecified number of hours in connection with reviewing the opposition, drafting the reply, and attending the hearing. (See Mot., Ibrahim Decl., Exh. B.) Anticipated fees are speculative and not recoverable as “actual time expended.” (Civ. Code, § 1794, subd. (d).)

Thus, the court reduces the award of attorney’s fees for anticipated time since Plaintiff did not specify a number of anticipated hours. Counsel claimed \$1,500.00 for anticipated time, which is not compensable.

Therefore, Plaintiff substantiated 24.9 of the 29.7 hours claimed by counsel in this litigation.

Reasonableness
of Counsel's Rates

The court finds the rates charged by some of Turriaga’s counsel are unreasonable. The trial court is the ultimate arbiter of what rates are reasonable. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36, stating, “experienced trial judges are the best judges of the value of professional services rendered in their courts.”) To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community as well as “the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here, Turriaga’s counsel requests hourly rates as outlined by this table.

Name

Admission

2023 Rate

2024 Rate

2025 Rate

2026 Rate

Angel

Baker

2003

\$650

Aniket

Bawankar

Clerk

\$205

John

Brummel

2025

\$415

James

Carroll

2006

\$595

\$595

Tionna

Carvalho

2014

\$570

\$665

Shelby

Clark

1999

\$525

Chris

Franco

2025

\$450

Mark

Gibson

2008

\$495

Kuldeep

Kaur

Clerk

\$195

Betty

Lulu

Clerk

\$195

Christopher

Myers

Clerk

\$195

Nino

Sanaia

2022

\$425

\$475

Janvi

Sharma

Clerk

\$290

Brian

Tan

2018

\$450

Rabiya

Tirmizi

2021

\$395

Counsel's

declaration provides an overview of the experience and credentials for each listed attorney and legal staff member. (See Shahian Decl., ¶ 16.) The court considered counsel's declaration and the cited decisions of other courts, but based on a review of this case compared to other Los Angeles-area counsel in similar lemon law cases, the court finds that the rates charged by some attorneys are unreasonable. Attorneys' rates over \$500 for this type of case is excessive, so the court reduces the rates of the attorneys whose rates exceed that amount per hour.

Angel

Baker billed 1.8 hours and substantiated 1.0 hour at a rate of \$650, so the court reduces the award by \$670.00. James

Carroll billed 8.5 hours and substantiated 7.0 hours at a rate of \$595, so the court reduces the award by \$1,557.50. Tionna

Carvalho billed and substantiated 0.2 hours at a rate of \$570 and billed and substantiated 1.3 hours at a rate of \$665, so the court reduces the award by \$228.50. Shelby Clark billed 2.0 hours and substantiated 0.5 hours at a rate of \$525, so the court reduces the award by \$800.00.

Furthermore,

as stated above, other attorneys failed to substantiate all of the hours claimed. Mark Gibson billed 1.3 hours and

substantiated 1.0 hour at a rate of \$495, so the court reduces the award by \$495.00. Nino Sanaia billed 1.2 hours and substantiated 0.5 hours at a rate of \$425 and billed and substantiated 0.1 hours at a rate of \$475, so the court reduces the award by \$297.50.

Finally,

as referenced above, counsel claimed \$1,500.00 for anticipated time, which is not compensable.

Therefore,
adjusting counsel's rates for reasonableness, the appropriate award of
attorney's fees is \$10,392.00 before applying any multiplier.

Lodestar
Multiplier

The
factors that courts look at to determine if a multiplier is reasonable are:
“(1) the novelty and difficulty of the questions involved, (2) the skill
displayed in presenting them, (3) the extent to which the nature of the
litigation precluded other employment by the attorneys, [and] (4) the
contingent nature of the fee award.” (Ketchum,
supra, 24 Cal.4th at 1132.)
“[T]he purpose of a fee enhancement is primarily to compensate the
attorney for the prevailing party at a rate reflecting the risk of nonpayment
in contingency cases.” (Id. at
1138.) When a case is not complicated,
“the request for a multiplier [is] specious.”
(Mikhaeilpoor, supra, 48 Cal.App.5th at 255.)

Here,
Plaintiff requests a lodestar multiplier of 1.35. (See Mot., pp. 8–9i.) To justify the multiplier, Plaintiff cites
the “excellent outcome,” “substantial risks posed by this litigation,” and
“delay of payment.” (Mot., pp. 8–9, paraphrased.) However, the other Ketchum factors do not support applying a multiplier.
The court determines that the case was a
relatively straightforward Song-Beverly action, counsel provided adequate and
appropriate representation, and counsel were not precluded from other
employment.

Therefore,
the court declines to apply a lodestar multiplier to the award of reasonable
attorney's fees of \$10,392.00.

Costs
and Expenses

A prevailing plaintiff has a right to recover all

costs and expenses that were reasonably incurred in prosecuting the case. (Civ. Code, § 1794, subd. (d).) Allowable costs must be reasonably necessary

to conduct the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subds.

(c)(2)–(c)(3).)

Plaintiff's counsel claims \$1,010.80 in costs and

expenses. (See Mot., pp. 2, 10; see

also Shahian Decl., Exh. 1, p. 3.) As

a preliminary matter, the court notes that Turriaga did not provide a

memorandum of costs. A memorandum of

costs is not due under California Rules of Court, rule 3.1700(a)(1) until after

a notice of entry of judgment or dismissal is served. (See Cal. Rules of Court, rule 3.1700(a)(1).) Although not required before notice of entry

of judgment or dismissal, a memorandum of costs is useful to the court to

determine whether the costs requested are categorically allowed by Code of

Civil Procedure section 1033.5. Additionally,

Turriaga's counsel does not provide invoices that allow the court to determine

that the costs claimed were actually incurred.

Therefore, the court cannot yet determine whether

Turriaga is entitled to the costs claimed.

Accordingly, Plaintiff's request for costs is DENIED WITHOUT PREJUDICE since Plaintiff failed to submit (1) a form MC-010 memorandum

of costs and (2) the invoices for her claimed costs.

CONCLUSION

For

these reasons, the motion for attorney's fees is GRANTED. Plaintiff is awarded attorney's fees in the

reduced amount of \$10,392.00.

Plaintiff's request for costs is DENIED WITHOUT PREJUDICE.